

SENATE No. 1245

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to empower communities against environmental damage.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>

SENATE No. 1245

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 1245) of Rebecca L. Rausch and Michael O. Moore for legislation to create the environmental enforcement task force. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to empower communities against environmental damage.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 214 of the General Laws is hereby amended by inserting after section 7A the
2 following section:-

3 Section 7B. (a) There shall be a task force known as the environmental enforcement task
4 force. The task force shall consist of: the secretary of energy and environmental affairs or a
5 designee, who shall serve as co-chair; the attorney general, or a designee, who shall serve as co-
6 chair; the commissioner of the department of environmental protection, or a designee; the
7 commissioner of the department of utilities, or a designee; the commissioner of the department
8 of fish and game, or a designee; the colonel of the Massachusetts environmental police, or a
9 designee; the chairs of the joint committee on the judiciary, or their designees; the chairs of the
10 joint committee on environment and natural resources, or their designees; the chief justice of
11 supreme judicial court, or a designee; someone from the Massachusetts Bar Association, or a
12 designee; an individual experienced in environmental law enforcement; and an individual with

13 experience representing environmental justice communities in legal proceedings. The chair may
14 invite officials from other state or federal agencies to provide legal and technical input and shall
15 have responsibility for coordinating the task force. The task force shall convene its first meeting
16 no later than December 2025. The task force shall meet not less than monthly.

17 (b) The task force shall: (i) study the commonwealth's capacity to enforce environmental
18 laws; (ii) developments in case law that have impacted the ability of individuals to enforce state
19 and federal environmental laws; (iii) identify state agency enforcement needs; (iv) study the
20 scope and use of civil actions under Massachusetts General Law Chapter 214, Section 7A; (v)
21 identify challenges, including but not limited to financial barriers, facing individuals in bringing
22 a civil action; and (vi) make recommendations to improve the environmental enforcement
23 process in the commonwealth, including improving access to the civil action process, in order to
24 limit damage to the environment.

25 (c) The task force shall file its findings, recommendations and accompanying legislation,
26 if any, with the clerks of the house of representatives and the senate, the joint committee on the
27 judiciary and the joint committee on environment and natural resources not later than December
28 31, 2026.